IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS

Jane Kay Cortez and Benjamin Jay Barber
Petitioner

Filed by ☐ Guardian *or* ☐ Guardian ad litem

v.

Kati Tilton, Housing Authority of Clackamas County
Respondent
(Person to be restrained)

Case No: _____

PETITION FOR RESTRAINING ORDER TO PREVENT ABUSE
Ex Parte

(Elderly Persons and Persons with Disabilities Abuse Prevention Act)

- *I need an interpreter:* ☐ *Spanish* ☐ *Russian* ☐ *other:* _____

NOTICE TO PETITIONER

- You must provide **complete and truthful** information. If you do not, the court may cancel the restraining order. The court may also hold you in contempt.
- **Contact Address and Telephone Number**: If you don't want Respondent to know your residential address or phone number, use a safe contact address and telephone number so the court and the sheriff can reach you if necessary.

I am ☒ **Petitioner** ***or*** ☐ **Petitioner's guardian or guardian ad litem**[1] ("guardian petitioner"). I declare that the following information is true as to Petitioner:

1. Residency
I live in *(county and state)* Clackamas County, Oregon

Respondent lives in *(county and state)* Clackamas County, Oregon / HACC

☒ I am filing in this county because an incident of abuse occurred here (see below)

If this Petition is filed by a guardian petitioner, Petitioner's SAFE contact information:

10043 SE 32nd Ave	Milwaukie, OR 97222	971-270-0855
Street	*City, State, ZIP*	*Contact Phone*

2. Party Information
Petitioner:
☒ is age 65 or older
☒ is a person with a disability

Other disability information *(optional)*: Jane is 72 and disabled; Benjamin is disabled.

☒ Respondent is not a court-appointed guardian or conservator for Petitioner

[1] Complete all answers on behalf of Petitioner, not yourself, unless otherwise specified

3. Other Cases Between Petitioner and Respondent *(pending or finished)*

☒ There is a restraining order[2] or stalking order

County and state: Clackamas County, Oregon; see Attachment A Case #: 25PO11318; 26P000432/433; 26FE0586

☐ There is a court case for divorce (dissolution), annulment, or separation

County and state: _____ Case #: _____

☐ There is a protective order case under ORS Chapter 125 (Guardianship and Conservatorship)

County and state: _____ Case #: _____

4. Abuse within past 180 days

Within the past 180 days (about 6 months)* the respondent has abused me (as defined in ORS 124.005(1)) at least one time in the following ways:
(check all that apply)

☐ Caused (or tried to cause) me physical pain or injury (not by accident)
☒ Caused physical harm by withholding services needed for my health and well-being
☐ Abandoned me by neglecting to perform or stopping duties and obligations and is my caretaker
☒ Wrongfully took or used my money or property, or threatened to
☐ Had sexual contact with me that I did not consent to or was not able to consent to
☒ Made me fear significant physical or emotional harm by:
- ☐ using derogatory, inappropriate, or profane names or phrases
- ☒ ridicule, harassment, threats, or intimidation
- ☐ inappropriate sexual comments
- ☒ conduct or actions

**The 180-day period can be increased by any time Respondent was in jail or prison, or lived more than 100 miles from your home*

☐ Respondent was in jail or prison
Dates (from – to) _____
☐ Respondent lived more than 100 miles from my home
Dates (from – to) _____

5. Incidents of Abuse *(if filing for sweepstakes restrictions, skip to section 7, below)*

A. Specific Acts re: Money or Property

☒ Respondent wrongfully took or used Petitioner's money or property
☒ Respondent knowingly alarmed Petitioner by threatening to wrongfully take or use money or property. It is reasonable for Petitioner to believe the threat would be carried out.

B. Describe the incidents of abuse that happened **within the past 180 days**, starting with the most recent incident

April 2026 Clackamas County, Oregon

Respondent participated in HACC actions to evict/displace Petitioners before federal relocation and voucher protections were complete. See Attachment A.

[2] Under EPPDAPA, Family Abuse Prevention Act (FAPA), or any other source

Date: March-April 2026 County, State: Clackamas County, Oregon

HACC processed relocation/voucher matters through Kati Tilton while the household was trying to port to Multnomah County, but continued possession/eviction pressure. Petitioners believe this threatens wrongful loss of housing/voucher property.

Date: Jan. 2026 and continuing County, State: Clackamas County, Oregon

After the Ashley Ferron petition was denied, Petitioners discovered Solomon Samuel Barber, who was subject to a protective order, caused or induced Benjamin's lease removal. See Attachment A.

Date: Mar. 22, 2026 and continuing County, State: Clackamas County, Oregon

HACC seeks possession before at least 90 days after March 22, 2026 despite federal relocation and voucher protections under 42 U.S.C. 1437p, 24 C.F.R. 970.21, and 24 C.F.R. 972.130. See Attachment A.

☒ Additional page attached labeled "Incidents of Abuse – 180 Days"

C. ☒ Other incidents of abuse happened **more than 180 days ago** *(describe)*:

Earlier events are included as context and pattern: the Ashley Ferron denial, Solomon lease-removal discovery, Julio VAWA dispute, essential-caregiver removal, and HACC's alleged disregard of federal housing protections.

☒ Additional page attached labeled "Additional Incidents of Abuse"

6. ☒ I am in **immediate and present danger of future abuse** by Respondent
Explain:

Petitioners face imminent loss of home, collapse of relocation rights, forced one-bedroom placement despite essential-caregiver needs, dog-safety and emergency-access risks, and severe harm to Jane Cortez, age 72 and disabled. See Attachment A.

7. *For sweepstakes restriction:*

☐ Petitioner has spent more than $500 on sweepstakes promotions from Respondent and/or associated entities in the past year. Petitioner needs the court's assistance to avoid incurring further expense.

8. Move-out and Assistance Orders

☐ I want Respondent ordered to move out of my residence *(check all that apply)*:

- ☐ the residence is solely in my name
- ☐ Respondent and I jointly own, lease, or rent the residence
- ☐ Respondent is my spouse or Registered Domestic Partner[3]

☐ I want a peace officer to accompany ☐ me ☐ Respondent to leave the residence and/or remove essential personal effects from the residence

9. Firearms Prohibition and Dispossession *(optional)*

☐ I ask the court to prohibit Respondent from possessing firearms and ammunition and to order Respondent to surrender all firearms and ammunition currently in their possession because Respondent is a threat to my physical safety and welfare.
Explain why: _____

☐ Petitioner and Respondent have a QUALIFYING RELATIONSHIP:

- ☐ spouses/Registered Domestic Partners *(current or former)*
- ☐ cohabitants *(current or former)*
- ☐ in a sexually intimate relationship *(current or former)*
- ☐ adults otherwise related by blood or marriage

10. Additional Relationship Information
(This information is optional. You do not have to tell the court what your relationship to Respondent is unless you have asked for an order prohibiting firearms in Section 9. Your restraining order will not be denied if you choose not to provide relationship information.)

Respondent is my:

☐ family member ☐ roommate/cohabitant ☐ landlord ☐ caregiver

[3] Only same-sex couples can have a Registered Domestic Partnership in Oregon. If you are not sure if your partnership is a Registered Domestic Partnership, you may want to talk to a lawyer.

☒ other: HACC operations manager / public-housing and voucher administrator

11. Attorney Fees

☐ I want Respondent to reimburse me for attorney fees and other expenses related to this case

I ask the court to order my requests as marked on the Restraining Order to Prevent Abuse

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I hereby declare that the above statements are true to the best of my knowledge and belief. I understand they are made for use as evidence in court and I am subject to penalty for perjury.

Submitted by: ☒ Petitioner ☐ Guardian petitioner ☐ Attorney for Petitioner

April ___, 2026	Jane Kay Cortez / Benjamin Jay Barber
Date	Signature
starworks5@gmail.com	Jane Kay Cortez and Benjamin Jay Barber
Email	Name (printed)

10043 SE 32nd Ave	Milwaukie, OR 97222	971-270-0855
Contact Address *(use a SAFE address)*	City, State, ZIP	Contact Phone *(use a SAFE number)*

Attorney for Petitioner:

Date	Signature
OSB#	Name (printed)

Address	City, State, ZIP	Phone

ATTACHMENT A

INCIDENTS OF ABUSE, DANGER, AND REQUESTED RELIEF

Protected Persons

1. Jane Kay Cortez is 72 years old and disabled. Benjamin Jay Barber is disabled. Both seek protection.
2. Petitioners live at 10043 SE 32nd Ave, Milwaukie, Oregon, in HACC-controlled public housing connected to a Tenant Protection Voucher and relocation process.

Most Recent Abuse Within 180 Days

3. In March and April 2026, Respondent Kati Tilton handled or materially participated in HACC voucher, orientation, relocation, and housing-process communications while Petitioners were trying to port a Tenant Protection Voucher to Multnomah County.
4. HACC nevertheless pursued or allowed eviction/possession before relocation and voucher protections were complete, threatening wrongful loss of housing, leasehold, voucher, relocation, subsidy, occupancy, and possessory rights.
5. Jane Cortez is in imminent danger of significant physical and emotional harm if locked out before relocation is complete because she is 72, disabled, and depends on stable housing, disability accommodations, and Benjamin Barber's assistance.
6. HACC removed or disregarded Benjamin Barber's designation and practical role as an essential family member / live-in caregiver for his elderly disabled mother. That designation and caregiving role would otherwise support a two-bedroom accommodation instead of forcing Jane and Benjamin into a one-bedroom arrangement.
7. By treating the household as eligible only for a one-bedroom unit, HACC is creating forced-privacy and safety risks: Benjamin Barber is an adult who is sexually active, and the lack of a separate bedroom may expose household members, guests, emergency personnel, or service providers to avoidable privacy conflicts and potential legal risk, including the concerns reflected in ORS 163.467.
8. The one-bedroom arrangement also increases the risk that guests or emergency personnel will be exposed to dog-bite hazards because there is no separate room to secure dogs while Benjamin cares for Jane or while others enter the home.
9. The same loss of bedroom/workspace makes it materially harder or impossible for Benjamin Barber to work from home as a software engineer while also caring for Jane Cortez and maintaining safe separation of sleeping, caregiving, dogs, equipment, guests, and emergency access.

VAWA / Lease-Removal Background

10. Petitioners raised abuse-related safety issues involving Julio Cortez and sought VAWA-related lease bifurcation or protection. Repository records reflect that a Julio-related protective order existed by November 2025 and that HACC was repeatedly placed on notice of household-composition and restraining-order issues.
11. Petitioners allege that despite the restraining-order and VAWA context, HACC unlawfully removed Benjamin Barber from the lease and treated Julio Cortez as restored to or still part of the household, penalizing the protected side of the household rather than isolating the alleged perpetrator.
12. Petitioners previously filed EPPDAPA/protective-order matters naming Ashley Ferron in her official HACC capacity. Repository materials reflect those petitions were denied. Petitioners reference those filings as background and pattern, not as proof that the prior petitions were granted.
13. After the Ashley Ferron matter was denied, Petitioners discovered and allege that Benjamin's brother, Solomon Samuel Barber, against whom a protective order had been made, was the person who caused or induced HACC to remove Benjamin from the lease despite that protective order.
14. Petitioners allege that Respondent Kati Tilton and HACC knew or should have known that relying on a restrained person's collateral communications or claimed authority to alter lease rights would endanger Petitioners and violate federal housing and abuse-protection safeguards.

Requested Relief

15. Order Respondent not to abuse, intimidate, molest, interfere with, or menace Petitioners.
16. Order Respondent not to cause, authorize, request, coordinate, or enforce displacement, lockout, eviction trespass, lease removal, loss of subsidy, loss of voucher, or loss of relocation rights while federal relocation/voucher issues remain unresolved except through lawful court proceedings after compliance with applicable federal protections.

17. Order Respondent and HACC not to take possession of, lock out Petitioners from, or otherwise dispossess Petitioners from 10043 SE 32nd Ave before at least June 20, 2026, which is 90 days after March 22, 2026, and only after compliance with 42 U.S.C. 1437p, 24 C.F.R. 970.21, and 24 C.F.R. 972.130.

18. Order Respondent to preserve all HACC records concerning Petitioners' lease composition, household status, VAWA/bifurcation requests, restraining-order documents, communications involving Solomon Samuel Barber or Julio Cortez, Tenant Protection Voucher, portability to Multnomah County, emergency-transfer issues, accommodations, and eviction/possession actions.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS

Jane Kay Cortez and Benjamin Jay Barber
Petitioner

Filed by ☐ Guardian *or* ☐ Guardian ad litem

v.

Kati Tilton, Housing Authority of Clackamas County
Respondent
(Person to be restrained)

Case No: _____

RESTRAINING ORDER TO PREVENT ABUSE

(Elderly Persons and Persons with Disabilities Abuse Prevention Act ORS 124)

NOTICE TO RESPONDENT

Review this order carefully

- Petitioner cannot give you permission to do something this Order prohibits
- You may be arrested and subject to civil and criminal penalties if you violate this order
- This order is enforceable in every state
- See the attached "*Notice to Parties*" and "*Request for Hearing*" for information about your right to a hearing

Based on the *Petition* and testimony of ☐ Petitioner ☐ Guardian Petitioner

THE COURT FINDS: *Judge Initials*

☐ Petitioner is an elderly person or person with a disability _____

☐ Respondent has abused Petitioner (as defined by ORS 124.005) within the past 180 days _____

☐ Petitioner is in immediate and present danger of further abuse _____

THE COURT ORDERS:

1. ☐ **Respondent is restrained from abusing, intimidating, molesting, interfering with, or menacing Petitioner** **1.** _____

2. ☐ Respondent is prohibited from entering, attempting to enter, or remaining at the following premises: **2.** _____
   ☐ Petitioner's residence *(address)*:_____
   ☐ _____
   ☐ _____

3. ☐ Respondent is ordered to **move from** and not return to the residence: **3.** _____
   (address):_____

4. ☐ A peace officer will accompany ☐ Petitioner ☐ Respondent to the residence to remove that party's essential personal items including (but not limited to) clothing, toiletries, medications, Social Security cards, birth certificates, identification, and tools of the trade **4.** _____

5. Contact **5.** _____

Except for appearing at and participating in legal proceedings or as needed to have Petitioner served with legal documents, Respondent is prohibited from contacting Petitioner or knowingly being within ☐ 150 *or* _____ feet of Petitioner

☐ **Except** Respondent may contact Petitioner by this method: _____

for this reason: _____

_____

6. ☐ **Sweepstakes** **6.** _____

Respondent is restrained from mailing Petitioner any sweepstakes promotion effective **150 days** from the date of this Order. Respondent is ordered to remove Petitioner from Respondent's sweepstakes promotion mailing list or place Petitioner on a list of persons to whom sweepstakes promotions may not be mailed. Respondent is ordered to promptly refund any payment received in any form from Petitioner after the date of this Order.

7. ☐ **Money and Property** **7.** _____

Respondent is:

☐ restrained from exercising control of Petitioner's money or property

☐ ordered to follow the instructions of Petitioner's guardian or conservator

☐ prohibited from transferring Petitioner's money or property to anyone other than Petitioner

☐ ordered to return custody and control of the following money or property to Petitioner by *(date)*_____ *(list property)*_____

_____

_____

8. No further service is necessary because Respondent appeared in person before the court **8.** _____

9. *(FOR COURT USE ONLY)*

FIREARMS PROHIBITION AND DISPOSSESSION **Judge's Initials**

(Not required unless firearms terms are being ordered.)

9A. The court orders Respondent is PROHIBITED from possessing firearms or ammunition 9A. _____

9B. Respondent is ordered to SURRENDER all firearms and ammunition in their possession according to the attached *Firearms Surrender Terms* because both of the following are found: 9B. _____

☐ Petitioner and Respondent have a QUALIFYING RELATIONSHIP *(current or former spouses/Registered Domestic Partners, current/former cohabitants, current/former sexually intimate relationship, adults related by blood or marriage, unmarried parents of a minor child)*

☐ Respondent represents a CREDIBLE THREAT to Petitioner's physical safety

FIREARMS NOTIFICATION

If Section 9A is initialed by the judge ordering that you are prohibited from possessing firearms or ammunition, you are immediately prohibited from purchasing or possessing any FIREARM, including a rifle, pistol, or revolver, and AMMUNITION (ORS 107.718(1)(h)).

If Section 9B is initialed ordering you to surrender firearms and ammunition, you will be prohibited from purchasing or possessing any firearms or ammunition under ORS 166.255 if:

- You request a hearing to contest this *Order* and the *Order* is not dismissed
- You request a hearing to contest this *Order* but then withdraw your request
- You request a hearing to contest this *Order* but do not attend the hearing

or

- 30 days pass after you were served with or became aware of this *Order* and you do not request a hearing to contest this *Order*

Talk to a lawyer if you have questions about this

10. SECURITY AMOUNT for violation of any provision of this Order is **$5,000** unless otherwise specified here: $_____ **10.** _____

11. Other Orders *(including service orders for sweepstakes promotions)* **11.** _____

Respondent/HACC must not take possession of 10043 SE 32nd Ave, lock out Petitioners, or dispossess them before June 20, 2026, which is 90 days after March 22, 2026, and only after compliance with 42 U.S.C. 1437p, 24 C.F.R. 970.21, and 24 C.F.R. 972.130.

The Petition for Restraining Order to Prevent Abuse is:

☐ **DENIED**

- ☐ Petitioner did not establish a claim for relief
- ☐ Petitioner did not appear at the time set for the ex parte hearing on the petition
- ☐ Other:

☐ **GRANTED**

The provisions of this Restraining Order are in effect for a period of one (1) year from the date of the judge's signature *(unless renewed before it expires)* or until the order is dismissed, modified, or replaced, whichever occurs first

Judge Signature:

_____ _____

Certificate of Readiness
This proposed order is ready for judicial signature because it is submitted **ex parte** as allowed by statute or rule; or is being submitted in **open court** with all parties present

Submitted by ☐ Petitioner ☐ Guardian petitioner ☐ Attorney for Petitioner

Date	Signature
OSB# *(attorneys only)*	Name (printed)

Contact Address *(use a SAFE address)* City, State, ZIP Contact Phone *(use a SAFE number)*

SERVICE INFORMATION

*****The Respondent will receive a copy of this information*****
If you do not want Respondent to know your residential address or phone number, use a contact address in the state where you reside or a contact phone number so the court and the sheriff can reach you if necessary. Check for mail at this address frequently. The court will assume that you receive all notices sent to your contact address.

PETITIONER: *(Name)* Jane Kay Cortez and Benjamin Jay Barber ☐ Female ☐ Male ☐ Nonbinary

10043 SE 32nd Ave | Milwaukie, OR | 97222
****Residence/Contact Address (use a safe address):**** *Street* *City, State* *ZIP*

Contact Phone Number 971-270-0855 *(Use safe contact number)*

Age 72 Race/Ethnicity _____ Height _____ Weight _____

Eye Color _____ Hair Color _____

RESPONDENT: *(Name)* Kati Tilton ☐ Female ☐ Male ☐ Nonbinary

Residence Address 13930 S Gain St, Oregon City, OR 97045
County

Phone Number 503-655-8267 / HACC main office

Date of Birth: _____ Race/Ethnicity _____ Height _____ Weight _____

Eye Color _____ Hair Color _____

PLEASE FILL OUT THIS INFORMATION
TO HELP WITH SERVICE OF THE RESTRAINING ORDER

Where is Respondent most likely to be found?

☐ Residence Hours _____ *Address above*
☒ Employment Hours HACC office / work hours Address 13930 S Gain St, Oregon City, OR 97045
☐ Other: Hours _____ Address _____

Description of Vehicle _____

Is there anything about the other party's character, past behavior, or the present situation that indicates that he or she may be a **danger** to others? To him/herself? (*Explain*): Administrative displacement and loss of housing/voucher property.

Does the other party have any **weapons, or access to weapons**? (*Explain*): _____
No weapons information known to Petitioners.

Has the other party ever been **arrested for or convicted of** a violent crime? (*Explain*): _____
No violent-crime information known to Petitioners.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF _____

_____ **Case No:** _____
Petitioner

_____
Filed by ☐ Guardian ☐ Guardian ad litem

v.

_____
Respondent

CERTIFICATE OF SERVICE

(Elderly Persons and Persons with Disabilities Abuse Prevention Act)

I, *(name)*_____, declare that I am a resident of the state of _____. I am a competent person 18 years of age or older. I am not a party to or lawyer in this case, and not the employee of a party.

I certify that on *(date)* _____at *(time)*_____(am/pm),
I served ☐ Respondent ☐ Petitioner named above by delivering the following documents in person to *(address or location of service)*_____
_____

I served true copies of the original *(check all that apply)*:

☐ Restraining Order to Prevent Abuse ***and*** Petition for Restraining Order to Prevent Abuse
☐ Order Renewing Restraining Order ***and*** Petition to Renew Restraining Order

with the Notice to Parties/Request for Hearing form

☐ Other *(name all forms or documents served)*_____
_____

I hereby declare that the above statements are true to the best of my knowledge and belief. I understand they are made for use as evidence in court and I am subject to penalty for perjury.

_____ _____
Date Signature of Server

_____
Print Name

If person serving is NOT a sheriff or sheriff's deputy, address and phone number of server:

_____

_____

NOTICE TO PARTIES AND REQUEST FOR HEARING

THIS FORM MUST BE ATTACHED TO ALL COPIES OF THE *RESTRAINING ORDER*

Notice of Petitioner's Rights

PETITIONER: You have the same right to request a hearing as the Respondent. File your *Request for Hearing* within 30 days of receiving notice of the *Order*.

If your *Petition* was filed by a guardian or guardian ad litem ("guardian petitioner") you still have the right to:

- talk to and be represented by a lawyer
- see your personal records
- request a hearing
  and
- present evidence and question witnesses at any hearing

RESPONDENT
A judge has issued a restraining Order that affects your rights. The order is now in effect.

Enforceability of the Restraining Order
The *Restraining Order* you have received is in effect and remains in effect until the court changes (modifies) or dismisses it, or until it expires. The petitioner may renew the order.

If you are arrested for violating this order, the security amount (bail) is $5,000, unless a different amount is ordered by the court.

Violation of the Restraining Order
Violation of any part of this order (or any order renewing or changing this order) is contempt of court. Contempt is punishable by a fine of up to $500 or 1% of your annual gross income, whichever is greater, or a jail term of up to six months, or both. Other penalties may also be imposed.

FIREARMS PROHIBITIONS MAY APPLY TO YOU!

If a firearms prohibition in Section 9 of the *Restraining Order* is initialed by the judge:

If 9A is initialed: Civil Penalties for Firearms Possession Apply

- it is immediately unlawful for you to possess or purchase a firearm, including a rifle, pistol, or revolver, and ammunition under ORS 124.020(1)(f)
- you are subject to contempt of court for violation of the firearms prohibition as soon as you are served with the *Order*

If 9B is initialed: Criminal Penalties for Firearms Possession Apply (ORS 166.255(1)(a))

You will be subject to criminal penalties for possessing firearms or ammunition effective the earlier of:

(1) 30 days after you were served with or became aware of the *Order*

Or, if you request a hearing:

(2) the date of the hearing if the *Order* is not dismissed *or*
(3) the date of the hearing if you fail to appear at the hearing *or*
(4) the date you withdraw your request for a hearing

You may also be prohibited from:

- Serving in the Armed Forces of the United States or being employed in law enforcement. If you have any questions about how these laws apply to you, talk to a lawyer.
- Traveling across state lines or tribal land lines with the intent to violate this Order and then violating this order
- Causing the Petitioner to cross state lines or tribal land lines for the purpose of violating the order

Other Laws May Also Apply To You

Whether or not a Restraining Order is in effect, federal law may prohibit you from:

- Traveling across state lines or tribal land lines with the intent to injure the Petitioner and then intentionally committing a crime of violence causing bodily injury to the Petitioner.
- Causing the Petitioner to travel across state lines or tribal land lines if your intent is to cause bodily injury to the Petitioner or if the travel results in your causing bodily injury to the Petitioner.

BOTH PARTIES

If you oppose the *Restraining Order*, complete the attached "*Request for Hearing*" form. Mail or deliver it to the address below.

A REQUEST FOR HEARING must be filed with the court **within 30 days** after you received the order. You must include your address and telephone number. A hearing will be held within 21 days after you file your request with the court. **If you do not go to the hearing, the restraining order may remain in effect.**

At the hearing, both parties can bring witnesses, including adult protective services workers. The hearing may be held in person or by telephone. The court may change, cancel, or continue any of the terms of the *Order*. The court may order either party to move from the residence, and may order one party to pay attorney fees and costs associated with the hearing.

If you do not request a hearing within 30 days, the order will remain in effect as issued

IF YOU COMPLETE THE REQUEST FOR HEARING FORM, MAIL OR DELIVER IT TO (*address of court*):_____

_____

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF _____

_____
Petitioner

Case No: _____

_____
Filed by ☐ Guardian ☐ Guardian ad litem

v.

_____
Respondent

REQUEST FOR HEARING

(Elderly Persons and Persons with Disabilities Abuse Prevention Act)

- *I need an interpreter:* ☐ *Spanish* ☐ *Russian* ☐ *other:* _____

I am the ☐ Respondent ☐ Petitioner. I request a hearing to oppose the *Restraining Order*.

I oppose the following orders granted in the *Restraining Order*:

Section Number	Explain:

☐ Additional page attached

I ☐ will ☐ will not be represented by an attorney at the hearing
Name and bar number of the attorney (if known): _____
_____

☐ I will need Americans with Disabilities Act accommodations at the hearing

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I hereby declare that the above statements are true to the best of my knowledge and belief. I understand they are made for use as evidence in court and I am subject to penalty for perjury.

Submitted by: ☐ Respondent ☐ Petitioner ☐ Attorney for {☐ Respondent ☐ Petitioner}

_____ _____
Date Signature

_____ _____
Email Name (printed)

_____
Contact Address City, State, ZIP Contact Phone

Attorney for filing party:

Date	Signature
OSB#	Name (printed)

Address	City, State, ZIP	Phone

NOTICE TO PETITIONERS:
RECEIVING ELECTRONIC NOTICE ABOUT RESTRAINING ORDERS

The sheriff is required to provide you with proof of service showing when your *Restraining Order* has been served

USE THIS FORM if you would also like to receive electronic notice by text message and/or email when your *Restraining Order* has been served or is about to expire

The information below will be given to the sheriff for the county where the *Restraining Order* is issued

DO NOT FILE THIS FORM WITH THE COURT!
Give or send it to the sheriff for the county where you filed for your *Restraining Order*

This is a VOLUNTARY option. You do not have to provide this information. The sheriff will still notify you when your *Restraining Order* has been served.

If your contact address or phone number changes, you must separately inform the court that issued the Order. If the information below changes, notify the sheriff.

PETITIONER'S NOTICE TO SHERIFF'S OFFICE
OF ELECTRONIC CONTACT INFORMATION

Your Name: _____

Respondent's Name: _____

Court Case #: _____

County where *Order* Issued: _____

Your cell phone number: _____

Cell Carrier *(AT&T, T-Mobile, Verizon. etc.)*: _____

Your email address: _____

NOTICE TO PETITIONERS RECEIVING ELECTRONIC NOTICE ABOUT RESTRAINING ORDERS

USE THIS FORM IF:

- You have already provided your email address or cell phone number to the sheriff's office to receive electronic notice when your *Restraining Order* has been served or is about to expire

AND

- Your email address or cell phone number has changed

DO NOT FILE THIS FORM WITH THE COURT

The information below must be provided to the sheriff's office in the county where the *Restraining Order* was issued

If your contact address or phone number has changed, you must separately inform the court that issued the Order

This form can be used ANYTIME a restraining order is in effect and you have changed your email address or cell phone number and still want to receive electronic notice from the sheriff's office about service or expiration.

PETITIONER'S NOTICE TO SHERIFF'S OFFICE OF CHANGE OF CONTACT INFORMATION

Your Name: _____

Respondent's Name: _____

Court Case #: _____

County where *Order* Issued: _____

Your new cell phone number: _____

Cell Carrier *(AT&T, T-Mobile, Verizon. etc.)*: _____

Your new email address: _____

EXHIBIT 1

February 2, 2026 HACC Email - Notice of Restraining-Order Documents

Included because the thread reflects Benjamin telling HACC that restraining-order documents and porting documents would be sent to HACC by priority mail.

Source file: /home/barberb/HACC/workspace/manual-imap-download-2026-03-31/20260202-164227_Re-Allegations-of-Fraud---JC-Household/message.eml
Date: Mon, 02 Feb 2026 16:42:27 -0800
From: benjamin barber <starworks5@gmail.com>
To: "Ferron, Ashley" <AFerron@clackamas.us>
Cc:
Subject: Re: Allegations of Fraud - JC Household

Relevant email text:

[excerpt begins]
Nextdoor
>>>>>> <https://nextdoor.com/agency-detail/or/clackamas/clackamas-county/>
>>>>>>
>>>>>> Confidentiality Notice: This e-mail message, including any
>>>>>> attachments, is for the sole use of the intended recipient(s) and may
>>>>>> contain confidential and privileged information. Any unauthorized review,
>>>>>> use, disclosure or distribution is prohibited. If you are not the intended
>>>>>> recipient, please contact the sender by reply e-mail and destroy all copies
>>>>>> of the original message.
>>>>>>
>>>>>> We are building a safe Clackamas County where all people thrive, are
>>>>>> celebrated for their diverse identities, and know they belong.
>>>>>>
>>>>>>
>>>>>>
>>>>>> *From:* benjamin barber <starworks5@gmail.com>
>>>>>> *Sent:* Tuesday, January 20, 2026 11:04 AM
>>>>>> *To:* HACC - Relocation <HACC-Relocation@clackamas.us>
>>>>>> *Subject:* Re: Allegations of Fraud - JC Household
>>>>>>
>>>>>>
>>>>>>
>>>>>> *Warning: External email. Be cautious opening attachments and links.*
>>>>>> * ---------- *
>>>>>>
>>>>>>
>>>>>> ----------
>>>>>>
>>>>>> I have worked on the porting paperwork, and I was going to work today
>>>>>> on getting the 1 month tax return that would reset my business' tax year,
>>>>>> and provide you with the statement of the 11-2025 to 12-2025 financial
>>>>>> statements, and was going to send that and the restraining order documents,
>>>>>> the porting documents to your office by priority mail, as soon as I can get
>>>>>> those documents completed. But I also had to fire some college student
>>>>>> junior developers for dishonesty / disloyalty / wage theft, and I had an
>>>>>> interview with a new math PHD post-graduate researcher to replace them, so
>>>>>> I've been behind on my deliverables as a result of that.
>>>>>>
>>>>>> Separately, I had Jimiliah Hart (i think that's how her name is
>>>>>> spelled) call jane cortez again, and I was under the impression that the
>>>>>> COO said there was only one person I would have to deal with, and that all
>>>>>> correspondences would be done by writing, and I dont know why they're not

>>>>>> being kept in writing. She represented by telephone that I was listed on
>>>>>> the household, and wanted jane to go into some office at 2pm today, but I
>>>>>> told her that I was already pursuing a lawsuit regarding the misconduct of
>>>>>> your office, and had already sought a restraining order against you but
>>>>>> only got to see a pro-tem (temporary) judge, who would not issue an order
>>>>>> under the circumstances.
>>>>>>
>>>>>> You still have not responded as to whether or not you intend to
>>>>>> comply with your legal obligations, and so i am operating on the assumption
>>>>>> that you are not and will not, and that I have to also work on polishing a
>>>>>> 42 USC 1983 that i intend to send to bill williams' office, because i
>>>>>> cannot rely on your good faith to comply and need to go above your heads.
>>>>>>
>>>>>>
>>>>>>
>>>>>> On Tue, Jan 20, 2026 at 10:09·AM HACC - Relocation <
>>>>>> HACC-Relocation@clackamas.us> wrote:
>>>>>>
>>>>>> Hello,
>>>>>>
>>>>>> I am reaching out to follow up on the intake packet and port request
>>>>>> forms sent last week for completion. Has Jane had the opportunity to
>>>>>> complete that paperwork?
>>>>>>
>>>>>>
>>>>>>
>>>>>> Thank you,
>>>>>>
>>>>>> * Ashley Ferron*
>>>>>> Pronouns (she/her)
>>>>>> Policy, Performance & Research Analyst, Sr.
>>>>>> Clackamas County Housing & Community Development Division (HCD)
>>>>>>
>>>>>> Clackamas County Department of Health, Housing & Human Services
>>>>>> P.O. Box 1510, 13930 S. Gain St, Oregon City, OR 97045-0510
>>>>>>
<https://www.google.com/maps/search/13930+S.+Gain+St,+Oregon+City,+OR+97045-0510?entry=gmail&source=g>
>>>>>> Phone: 503-867-7487 · Text Friendly
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>>>>>> Hours of Operation: Mon · Thur, 7:30 a.m. · 6 p.m.
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>>>>>>
>>>>>>
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>>>>>> <https://nextdoor.com/agency-detail/or/clackamas/clackamas-county/>
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>>>>>> recipient, please contact the sender by reply e-mail and destroy all copies
>>>>>> of the original message.
>>>>>>
>>>>>> We are building a safe Clackamas County where all people thrive, are
>>>>>> celebrated for their diverse identities, and know they belong.
>>>>>>
>>>>>>
>>>>>>
>>>>>> *From:* benjamin barber <starworks5@gmail.com>
>>>>>> *Sent:* Monday, January 12, 2026 2:20 PM
>>>>>> *To:* HACC - Relocation <HACC-Relocation@clackamas.us>

>>>>>> *Subject:* Re: Allegations of Fraud - JC Household
>>>>>>
>>>>>>
>>>>>>
>>>>>> *Warning: External email. Be cautious opening attachments and links.*
>>>>>> * ---------- *
>>>>>>
>>>>>>
>>>>>> ----------
>>>>>>
>>>>>> You had previously claimed that you had not received an application
>>>>>> from the Blossom, and yet i clearly filled out the income declaration form,
>>>>>> and their application, which I did provide to their office.
>>>>>>
>>>>>> Now, I will fill out a 1 month 1099, since i want to align my company
>>>>>> taxes for Hallucinate LLC, which was formed in November 2024 with the
>>>>>> calendar year, and I will reprint and provide you with the November 2024 -
>>>>>> November 2025 1099-NEC and form 1120, and i will provide you with the
>>>>>> December 2025 1099 NEC and form 1120, which would will put my taxes in line
>>>>>> with the calendar year. I am going to fill out the Jane Cortez vs Julio
>>>>>> Cortez restraining order tonight, and will fill out the Port Out request
>>>>>> which I intend to send to you tomorrow.
>>>>>>
>>>>>>
>>>>>>
>>>>>> On Mon, Jan 12, 2026 at 10:48·AM HACC - Relocation <
>>>>>> HACC-Relocation@clackamas.us> wrote:
>>>>>>
>>>>>> Hello,
>>>>>>
>>>>>> The voucher amount that Jane and her Household would receive from
>>>>>> HACC will not apply to any units within Multnomah County. She will need to
>>>>>> go through the process of getting and then porting her voucher to that
>>>>>> county.
>>>>>>
>>>>>>
>>>>>>
>>>>>> At this time, Julio is a member of the Household and will need to
>>>>>> complete paperwork as well. If you or Jane have court documentation showing
>>>>>> that Julio cannot reside in the household, please submit it for review.
>>>>>>
>>>>>> In the meantime, I have attached the intake paperwork and a port
>>>>>> request form.
>>>>>>
>>>>>> Thank you,
>>>>>>
>>>>>> * Ashley Ferron*
>>>>>> Pronouns (she/her)
>>>>>> Policy, Performance & Research Analyst, Sr.
>>>>>> Clackamas County Housing & Community Development Division (HCD)
>>>>>>
>>>>>> Clackamas County Department of Health, Housing & Human Services
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>>>>>> of the original message.
>>>>>>
>>>>>> We are building a safe Clackamas County where all people thrive, are
>>>>>> celebrated for their diverse identities, and know they belong.
>>>>>>
>>>>>>
>>>>>>
>>>>>> *From:* benjamin barber <starworks5@gmail.com>
>>>>>> *Sent:* Monday, January 12, 2026 10:06 AM
>>>>>> *To:* HACC - Relocation <HACC-Relocation@clackamas.us>
>>>>>> *Subject:* Re: Allegations of Fraud - JC Household
>>>>>>
>>>>>>
>>>>>>
>>>>>> *Warning: External email. Be cautious opening attachments and links.*
>>>>>> * ---------- *
>>>>>>
>>>>>>
>>>>>> ----------
>>>>>>
>>>>>> Sorry I·m on mobile, Waterleaf apartments wanted to know the voucher
>>>>>> amount, she is scheduled for a tour on Thursday and has already signed the
>>>>>> application and turned it in. Call her when you would like, but I·m
>>>>>> inclined to leave clackamas county despite the fear mongering, especially
>>>>>> about Julio coming back to live with us.
>>>>>>
>>>>>> [image: cid:image001.jpg@01DC8A2A.6C6D8A90]
>>>>>>
>>>>>>
>>>>>>
>>
[excerpt ends]

EXHIBIT 2

January 12, 2026 HACC Email Chain - Household Composition and Court Documentation

Included because HACC's household-composition thread states Benjamin was no longer listed as a household member based on internal review and court documentation currently on file.

Source file: /home/barberb/HACC/evidence/email_imports/starworks5-fraud-reimport-20260404/0014-Re-Allegations-of-Fraud---JC-Household-CAMTdTS_8pxVnRAMoaQ0n2oi1yBNnLNAiFSu4MFsTet-jJWJogQ-mail.gmail.com/message.eml
Date: Mon, 12 Jan 2026 13:55:45 -0800
From: benjamin barber <starworks5@gmail.com>
To: HACC - Relocation <HACC-Relocation@clackamas.us>, "Tilton, Kati" <KTilton@clackamas.us>
Cc:
Subject: Re: Allegations of Fraud - JC Household

Relevant email text:

On Mon, Jan 12, 2026 at 1:42·PM benjamin barber <starworks5@gmail.com>
wrote:

> On what legal basis was I no longer listed as a member of a household? you
> state that this was based on "Following internal review and based on the
> court documentation currently on file, the household composition has been
> determined to consist of Julio and Jane. This determination reflects the
> outcome documented in those records." But this does not reflect the fact
> that Julio does not live here and has a court order denying him the ability
> to live here, now if you would like me to go seek another restraining
> order i am happy to do so tomorrow, but you are not in compliance with the
> violence of women act, which dictates that i cannot be removed from the
> lease. Do you dispute your obligations under the Violence Against Women
> Act, and should this proceed to the courts?
>
>
> On Mon, Jan 12, 2026 at 1:25·PM HACC - Relocation <
> HACC-Relocation@clackamas.us> wrote:
>
>> Hello,
>>
>> Attached is the lease rider previously issued to Jane. As reflected in
>> that document, effective January 1, 2026, you are no longer listed as a
>> member of the household.
>>
>> Following internal review and based on the court documentation currently
>> on file, the household composition has been determined to consist of Julio
>> and Jane. This determination reflects the outcome documented in those
>> records.
>>
>> This email is provided to confirm the current lease status and household
>> composition.
>>
>> With regard to the Household·s voucher budget, without the attached
>> paperwork completed and returned with any necessary supporting documents,
>> we are unable to definitively provide their housing search budget. Once we
>> have received everything necessary, their budget will be calculated, and
>> Jane and her household will be scheduled for an Orientation to go over this
>> information before porting her to Multnomah County, should she also
>> complete and return the port request form.
>>
>>

>>
>> Thank you,
>>
>> * Ashley Ferron*
>> Pronouns (she/her)
>> Policy, Performance & Research Analyst, Sr.
>> Clackamas County Housing & Community Development Division (HCD)
>>
>> Clackamas County Department of Health, Housing & Human Services
>> P.O. Box 1510, 13930 S. Gain St, Oregon City, OR 97045-0510
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>>
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>> <https://www.youtube.com/user/ClackamasCounty> | Nextdoor
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>> of the original message.
>>
>> We are building a safe Clackamas County where all people thrive, are
>> celebrated for their diverse identities, and know they belong.
>>
>>
>>
>> *From:* benjamin barber <starworks5@gmail.com>
>> *Sent:* Monday, January 12, 2026 12:15 PM
>> *To:* HACC - Relocation <HACC-Relocation@clackamas.us>
>> *Subject:* Re: Allegations of Fraud - JC Household
>>
>>
>>
>> *Warning: External email. Be cautious opening attachments and links.*
>> * ---------- *
>>
>>
>> ----------
>>
>> https://chatgpt.com/share/696555b6-c314-8013-894b-fd59cf88d5e1
>>
>> I will also note that Julio is ineligible, because he has been
>> intentionally hiding income from the government, and intentionally not
>> paying taxes since my childhood, so I do not think you should be
>> considering him eligible for public services, and there is disparate
>> treatment going on based on retaliation for whistleblowing.
>>
>> ```
>> Someone who has been *defrauding* the program by *hiding income* is *not
>> ·eligible· to keep or receive Section 8 on that basis*·and if
>> discovered, they can face *denial/termination, repayment, and possible
>> criminal referral*.
>>
>> ```
>>
>>

>>
>> On Mon, Jan 12, 2026 at 12:09·PM benjamin barber <starworks5@gmail.com>
>> wrote:
>>
>> Why am I not an approved occupant of the unit? what is the amount of the
>> tenant protection voucher in clackamas county?
>>
>>
>>
>> On Mon, Jan 12, 2026 at 12:08·PM HACC - Relocation <
>> HACC-Relocation@clackamas.us> wrote:
>>
>> Hello,
>>
>> Currently, Julio and Jane are the only household members and approved
>> occupants of the unit.
>>
>> I also cannot provide a budget for Multnomah County. They will need to
>> apply their budgets to the household after processing the household's
>> paperwork.
>>
>>
>>
>> Thank you,
>>
>> * Ashley Ferron*
>> Pronouns (she/her)
>> Policy, Performance & Research Analyst, Sr.
>> Clackamas County Housing & Community Development Division (HCD)
>>
>> Clackamas County Department of Health, Housing & Human Services
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>> of the original message.
>>
>> We are building a safe Clackamas County where all people thrive, are
>> celebrated for their diverse identities, and know they belong.
>>
>>
>>
>> *From:* benjamin barber <starworks5@gmail.com>
>> *Sent:* Monday, January 12, 2026 10:58 AM
>> *To:* HACC - Relocation <HACC-Relocation@clackamas.us>
>> *Subject:* Re: Allegations of Fraud - JC Household
>>
>>
>>
>> *Warning: External email. Be cautious opening attachments and links.*

>> * ---------- *
>>
>>
>> ----------
>>
>> Julio is not a member of the household, because he has a restraining
>> order against him, i will present you with the court order with regards to
>> me, and I will get another restraining order on behalf of jane cortez, and
>> therefore he will be removed via the Violence against women act. and I will
>> return the restraining order that I have along with these applications that
>> you have provided to me, and if you would like i will go and get the second
>> restraining order filed in the courthouse if that doesn't satisfy you.
>>
>> I understand that the voucher will have to be ported to multnomah county,
>> and I specifically chose the waterleaf apartments because of its proximity
>> to OHSU hospital and the streetcar, so that she has better ability to get
>> out of the house more frequently, and they did not have the restrictions on
>> the dog as was imposed on my on the last minute by Blossom, and the letter
>> i received that the units might not be available in time at the blossom.
>>
>> I wanted to know what was the amount of the voucher, because i wanted to
>> know what amount the rents will be able to cover in a new place, if the
>> voucher is for $5/month (five dollars a month) obviously this is not
>> sufficient to pay rent, so I need to anticipate the budget that i need to
>> calibrate my expenses to.
>>
>>
>>
>> On Mon, Jan 12, 2026 at 10:48·AM HACC - Relocation <
>> HACC-Relocation@clackamas.us> wrote:
>>
>> Hello,
>>
>> The voucher amount that Jane and her Household would receive from HACC
>> will not apply to any units within Multnomah County. She will need to go
>> through the process of getting and then porting her voucher to that county.
>>
>>
>>
>> At this time, Julio is a member of the Household and will need to
>> complete paperwork as well. If you or Jane have court documentation showing
>> that Julio cannot reside in the household, please submit it for review.
>>
>> In the meantime, I have attached the intake paperwork and a port request
>> form.
>>
>> Thank you,
>>
>> * Ashley Ferron*
>> Pronouns (she/her)
>> Policy, Performance & Research Analyst, Sr.
>> Clackamas County Housing & Community Development Division (HCD)
>>
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[excerpt ends]

EXHIBIT 3

March 17, 2026 HACC Email - Warning About Communication With Restrained Parties

Included because the email to Kati Tilton and B. Williams asks whether HACC was still communicating with parties who had restraining orders against them in the courts.

Source file: /home/barberb/HACC/workspace/imap-confirmed-messages/2026-03-17_additional-info_bwilliams_2.eml
Date: Tue, 17 Mar 2026 17:31:01 -0700
From: benjamin barber <starworks5@gmail.com>
To: "Tilton, Kati" <KTilton@clackamas.us>, bwilliams@clackamas.us
Cc:
Subject: Re: Additional Information Needed

Relevant email text:

Would you care to explain why you're trying to violate the computer fraud
and abuse act and HIPPAA, are you still in communication with parties that
have restraining orders against them in the courts?

[image: image.png]

[image: image.png]

On Tue, Mar 17, 2026 at 12:00·PM Tilton, Kati <KTilton@clackamas.us> wrote:

> Hello,
>
>
> To be clear, the submission of reasonable accommodation paperwork will not
> delay your household being issued a one-bedroom voucher issued. We are
> completing the background checks for you and your mother today. We will be
> reaching out soon to schedule the orientation and issue your voucher.
>
>
> Thank you,
>
>
> Kati
>
>
>
> Kati Tilton
>
> 971-201-8582
>
> Operations Manager, Housing Authority of Clackamas County
>
>
>
> *From:* benjamin barber <starworks5@gmail.com>
> *Sent:* Tuesday, March 17, 2026 9:54 AM
> *To:* Tilton, Kati <KTilton@clackamas.us>; Williams, Billy <
> BWilliams@clackamas.us>
> *Subject:* Re: Additional Information Needed
>
>
>
> *Warning: External email. Be cautious opening attachments and links.*

> * ---------- *
>
>
> ----------
>
> You are still coming up with more reasons for a delay, why have you not
> provided any voucher whatsoever yet if we are supposed to be moving in 2
> weeks? Why is the apartment you procured not ready to move in yet? Why do
> we have no relocation assistance check to contract movers?
>
>
>
> I already provided you a photo of her cane, her mobility scooter, and the
> letter arranging transport for her to go to the neighborhood health center
> one block from here over a year ago. I·m going to need to arrange a new
> physicians visit, because she moved from Kaiser permanente to NHC because
> it·s too far away about that same time, and that is likely not easy to do
> given the time constraints.
>
>
>
> You seem to be missing the obvious point that the mobility scooter is not
> going to go up and down a third floor set of stairs that you wanted us to
> move to. Jane has had 7 children and 8 pregnancies to term and legs of
> different length, and can·t even walk one block to NHC. Moreover we need a
> 2 bedroom because of the obvious point that you complained about not
> wanting to watch me have sex and therefore she shouldn·t be forced to.
>
>
>
> Your office should have known this from when they talked to us about
> installing the shower equipment and the portable ramp, and the continuous
> demand for superfluous documentation eg demands for business documents for
> companies shuttered 10 years ago, only serves to show you want to obstruct
> and delay, and then blame me for your delays. Ive wanted out of Clackamas
> county for 3 months, because of the unlawful conduct I·ve been
> experi
[excerpt ends]